



Maritime &  
Coastguard  
Agency

Guidance

# Safety Bulletin 17: Safety concern over lifting operations on fishing vessels

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## Summary of issue

The Maritime and Coastguard Agency are issuing this safety bulletin to remind owners, employers, skippers and crew of UK fishing vessels of their responsibilities regarding health and safety following a number near misses, accidents, and a fatality – during lifting operations. Although applicable to all fishing vessels it is scallop dredgers that are of immediate concern.

It is a requirement of the Merchant Shipping and Fishing Vessels (Lifting Equipment and Lifting Operations Regulations) 2006 (SI 2006/2184) that the owner / employer shall ensure all lifting operations are properly planned, appropriately supervised and conducted in a safe manner<sup>[footnote 1]</sup>. It is a further requirement, by thorough examination and inspection, that the owner / employer has the equipment inspected to ensure it is both safe to operate and capable of operating safely.

Since the introduction into UK law of the Work in Fishing Convention (ILO 188) it is a requirement for every owner to take responsibility for the health and safety of those working on their fishing vessel(s), its operations and the manner in which it is operated<sup>[footnote 2]</sup>. The owner / employer shall identify the operations that pose a risk to the skipper and crew through a risk assessment<sup>[footnote 3]</sup>. The owner / employer shall ensure that the company instructions are passed to the skipper of the vessel.

It is the responsibility of the skipper to follow these instructions and for the crew to follow all reasonable instructions made of them.

It is the owner's / employer's responsibility to ensure that a lifting plan has been provided to the skipper and that the skipper knows what is expected of them

It is the owner's responsibility to identify key areas of risk in respect of lifting operations in accordance with the Fishing Vessels (Health and Safety at Work Regulations) 1997 (SI 1997/2962). The owner must identify, for example, potential crush zones and blind sectors due to vessel structure.

If crush zones or blind sectors exist, then the owner must ensure appropriate measures have been put in place to mitigate the associated risks and ensure safe operations. If a lifting operation cannot be undertaken safely then it shall not continue.

The skipper shall be made aware that he has responsibility for the safety of the crew, the vessel and its operations whilst at sea. In deteriorating sea / weather conditions it is the skipper's responsibility to identify the operational limits for safe lifting operations.

Due to recent cases scallop dredging has been identified as being of particular concern due to the number of reported incidents.

## **Actions to take**

In order to determine the extent of the issue surveyors will request the lifting plan during attendance on a fishing vessel.

Owners, operators, skippers, crew and safety advisors are requested to be aware of these issues and take appropriate action.

Owners shall ensure that their obligations under ILO 188 have been met in providing their crew with a safe place of work. The manner in which the vessel should be operated shall be clearly provided to the skipper. The provision of a Lifting Plan is essential for meeting one of the obligations of the Working Fishing Convention ILO 188.

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1. The Merchant Shipping and Fishing Vessels (Lifting Operations and Lifting Equipment) Regulations 2006
  2. MGN 587 Responsibilities of fishing vessel owners, managers, skippers and fishermen.
  3. Merchant Shipping and Fishing Vessels (Health and Safety at Work) Regulations 1997 as amended in 2018



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